

Court No. - 32

Case :- WRIT - C No. - 65124 of 2013

Petitioner :- Jay Prakash Yadav

Respondent :- State Of U.P. Thru Secy. And 2 Others

Counsel for Petitioner :- R.B. Singh, N.K. Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Sunil Ambwani, J.

Hon'ble Surya Prakash Kesarwani, J.

We have heard learned counsel appearing for the petitioner. Learned Standing Counsel appears for the State respondents.

It is admitted that the petitioner unauthorisedly drew the electricity at the time of making construction of the new house. An inspection was made on which he was found committing the theft of electricity. An assessment of Rs. 40,000/- as a theft case has been made against him.

It is submitted by learned counsel for the petitioner that though the petitioner committed the theft of electricity, he is ready to pay the amount in instalments and the Court may direct the respondents to give new connection to him in accordance with the law.

The U.P. Electricity Supply Code, 2005 places restriction for giving a new connection, if there is a case of theft and unpaid dues of the theft case.

It is not stated by the petitioner, that the assessment of electricity charges under Section 135 of Electricity Act are on higher side, nor he has challenged the assessment of theft case before the Executive Engineer, UP Power Corporation Ltd. or file an appeal under the Electricity Act.

The writ petition is **dismissed**. In case the petitioner is aggrieved by the quantum of the assessment, he may file a representation, and thereafter an appeal under the Electricity Act. If he does not want to raise a dispute on the assessment and wants a new connection, he may deposit the entire amount before making the request for providing the new connection.

It will also be open to the petitioner to make an application for compounding in the offence of theft, if a first information report has been lodged under Section 135 of Electricity Act.

Order Date :- 28.11.2013

RKP